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Limon v. Doug Martin Contracting

Company Inc., et al., Case No. 22PSCV02675

ORDER ON MOTION

FOR SUMMARY JUDGMENT

Defendant Doug Martin Contracting Company,
Inc.'s Motion for Summary Judgment is DENIED.

Background

Plaintiff

Lorraine Limon ("Limon") alleges that she sustained injuries and damages in a December 2, 2021 trip and fall on Rorimer Street in La Puente. She has sued, among others, moving defendant Doug Martin Contracting Company Inc. ("DMC"), the entity which she alleges negligently performed certain street paving work in the area where she fell.

DMC now

moves for summary judgment on Limon's sole cause of action against it, for general negligence.

For the

reasons stated herein, the motion is denied.

Legal

Standard

“ ‘A

trial court properly grants summary judgment where no triable issue of material fact exists and the moving party is entitled to judgment as a matter of law.’ ... The materiality of a disputed fact is measured by the pleadings ... , which ‘set the boundaries of the issues to be resolved at summary judgment.’” (Conroy v. Regents of University of California (2009) 45 Cal.4th 1244, 1250, internal citations omitted; see also Planned Parenthood v. City of Santa Maria (1993) 16 Cal.App.4th 685, 690-691 [“pleadings define[] the issues for summary judgment and summary adjudication”].) “The defendant [moving for summary judgment] must present facts to negate each claim as framed by the complaint or to establish a defense. Only then must the plaintiff demonstrate the existence of a triable, material issue of fact. [Citation.]” (Wattenbarger v. Cincinnati Reds, Inc. (1994) 28 Cal.App.4th 746, 750.)

“It is

elemental that a notice of motion must state in writing the ‘grounds upon which it will be made.’ [Citations.] Only the grounds specified in the notice of motion may be considered by the trial court. [Citation.]” (Gonzales v. Superior Court (1987) 189 Cal.App.3d 1542, 1545.)

Discussion

Contents
of Notice

DMC's

Notice of Motion identifies the following grounds for summary judgment and/or issues for summary adjudication:

1.

No duty / no breach as to the alleged curb/gutter lip condition.

(a)

DMC's contract with the City did not include grinding asphalt or other, similar work that allegedly caused Limon's fall, so it owed Limon no duty;

(b)

DMC did not perform work not included in its contract—although it performed slurry sealing work—so it performed no work that allegedly caused Limon's fall; and

(c)

DMC cannot be held liable for work falling outside the scope of its contract.

2.

The alleged condition is a pre-existing curb/gutter lip not caused or exacerbated by DMCC's ½-inch slurry seal.

(a)

The lip between asphalt and concrete where Limon allegedly fell matches the lip on the other side of Rorimer Street and on other nearby streets where DMC did not perform slurry sealing work, showing that the lip was pre-existing and was not affected by DMC's work; and

(b)

As a matter of law, Plaintiff cannot establish that any act or omission by [DMC] was a substantial factor in causing the alleged dangerous condition.

3.

The alleged condition is trivial and not a dangerous condition as a matter of law.

4.

No actual or constructive notice to [DMC] of any dangerous condition."

5.

No causation as to Plaintiff's claimed injuries.

(a)

Plaintiff cannot establish Plaintiff's slurry seal caused her to fall; and

(b)

Plaintiff's knee problems predate her fall.

6.

The City of La Puente has no evidence that DMCC created or contributed to the alleged condition. [FN]

Evidentiary Objections

Limon's

evidentiary objection to the declaration of DMC's expert is sustained as to the extent and effect of lighting on the date of the incident, and otherwise overruled, although the expert's testimony on this matter is not material to the motion's outcome.

DMC's

Objections Nos. 1-6 to the declaration of George Limon are overruled, except as to "when my wife, Lorraine Limon, tripped and fell over a crack" (§ 2, Obj. No. 2) and "Lorraine fell on her right knee and suffered a cut" (§ 4, Obj. No. 4), which Mr. Limon does not establish he personally witnessed. The Court notes, however, that apart from the characterization of the defect in the asphalt as a "crack," the facts in the excluded portion of Mr. Limon's declaration are not meaningfully disputed.

DMC's

Objections Nos. 7-12 to the declaration of Lorraine Limon are overruled in their entirety.

The

Court rules as follows on the objections to the Declaration of Babak Malek:

Objections Nos. 13-15, 17-18, 20-23, 25-26, 28, 30, and 33-34 are overruled.

Objections

Nos. 16, 19, 27, 29, and 35 are sustained for improper legal conclusion.

Objections

Nos. 24 and 31 are sustained for speculation and/or lack of foundation.

Objection

No. 29 is sustained for improper legal conclusion as to "foreseeable", and otherwise overruled.

Objection

No. 32 is sustained for improper opinion. The matter does not require expert testimony to assist the finder of fact.

Merits

At the outset, the Court observes that parties rely almost entirely on precedents discussing (1) premises liability or (2) dangerous condition of public property. The Court is not persuaded either of these legal theories is relevant.

It appears undisputed that DMC did not own, maintain, or control the area where Limon fell at the time she fell. Ownership, maintenance, or control is a necessary element of premises liability. (See *Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158 [premises liability “grounded in the possession of [] premises and the attendant right to control and manage the premises”].)

As for dangerous condition of public property, this theory was alleged separately as the second cause of action in Limon’s complaint, and only against the public entity defendants (e.g., the City), not against DMC. It is undisputed that DMC is not a public entity.

Limon’s claim against DMC is for ordinary or general negligence. She describes the duty owed and breached by DMC in two paragraphs. She contends (1) “Defendants . . . had a duty to re-pave the public street in a prudent and workman like [sic] manner, including paving cracks, such as the one [Limon] tripped over. . . . [Limon] would not have been injured if the re-paving was done carefully, so as not to leave jagged or rough edges” (FAC, ¶ 16); and second, similarly, that “Defendants ... breached their duty ... by not adequately re-paving Rorimer Street” (id., ¶ 17).

Because this is an action for ordinary negligence, much of the parties’ case law is irrelevant and offers little guidance for the Court. The misunderstanding of Limon’s legal theory also calls the sufficiency of DMC’s Notice into question.

The Court determines that DMC has failed to carry its threshold burden to show its contract with the City precluded work other than slurry sealing at the site of Limon’s accident. As noted in the Court’s prior ruling on City’s motion for

summary judgment against DMC, the primary Contract Agreement for Citywide Slurry Seal incorporates numerous unattached documents: “the Notice Inviting Sealed Bids, Instructions to Bidders, Proposal, General Specifications, Standard Specifications, Special Provisions, Plans, and all referenced specifications, details, standard drawings, and appendices; together with this contract agreement and all required bonds, insurance certificates, permits, notices, and affidavits and also including any and all addenda or supplemental agreements clarifying, amending, or extending the work contemplated as may be required to ensure its completion in an acceptable manner,” with all “made a part [of the Contract] as though fully set forth herein.” (Volk Decl., Exh. C, at p. 1.) Accordingly, DMC is unable to meet its burden that it was not hired to do work that may have caused or contributed to Plaintiff’s fall.

The Court further determines Limon has raised a triable issue on causation, since it appears undisputed that she tripped in an area where DMC performed work. Nor is it meaningfully disputed that Limon suffered an injury from her fall. The Court rejects the argument that Limon’s prior knee conditions preclude causation or injury as a matter of law.

Accordingly, the Court determines that DMC has failed to carry its burden on breach, causation, and injury.

The motion is denied.

[FN] Issue No. 6 is improper for summary adjudication, as it does not fully dispose of a cause of action, affirmative defense, etc. as required by Code of Civil Procedure section 437c.